

From: Rich McLean rich@richmclean.com.au
Subject: Re: AFCA Case 737458, Mr Richard McLean and Bendigo and Adelaide Bank Limited
Date: 1 September 2020 at 8:50 am
To: MHLC mhlc@mhlc.org.au
Cc: Rich McLean rich@richmclean.com.au



Dear MHLC,

i have an extraordinary tale to tell, as outlines in the attached email.

The original complaint was because even though I told a GP how I would kill myself and was suicidal - he did not intervene.

In fact, he gave me the fatal dose in which i overdosed in August 2018.

AHPRA rejected my claim because it was based on a recording of the consultation.

I did not record it out of malice - I thought AI was going crazy.

His lawyer told AHPRA not to listen to the recording.

AHPRA told me I could submit a transcript, however his lawyer wrote all over it and recommended it not be used.

I have attached an email with a long list of trouble in getting justice.

I have been silenced - and they hope I die, quite simply.

I overdosed again recently after fighting this by myself for 2 1/2 years.

Ive been to AHPRA, NHPOPC, the Police, IBAC, Human [Rights.gov.au](https://www.humanrights.gov.au) - where extraordinarily they have refused to acknowledge me and are trying to escape the fact that if the GP did nothing wrong he would have listened to the recording to exonerate himself and this has not happened.

I understand though it is not an offence in Victoria to record something if your life depends on it, or it is for your human rights or self preservation.

The original recording I have published her: please indulge me in listening to it:

www.richmclean.com.au/justice

Now I have been threatened to be sued by NHPOPC.

Even Greg Hunt the Federal Minister had knowledge of the recording and gaslighted me - sending me back to AHPRA

I have evidence that AHPRA based my complaint on nothing.

not the recording NOR the translation.

here is the DR's lawyer



Dr.whitakers.law
yer.mar...ble.pdf

This is my frustration of suffering with no help:



my.frustration.s
uffering.pdf

These are the medications I am on



medications for

...madness.pdf

The human rights people told me they would not represent me.

It is now being investigated by the ombudsman

I cant believe no one cares for me.

I have summarised it here:

'I am the victim of a conspiracy, and have been stigmatised and rejected because I have a mental illness and a suicide survivor.

It is because I made a complaint exposing medical malpractice and professional negligence.

In a nutshell-a GP I had seen for years was my only contact and confidant. I saw him, and to 'reality check' I was not going mad-I recorded it.

I did not do it out of malice.

The recording shows that I told him ways I would kill myself-he was derogatory and dismissive and offered no help. If that were not bad enough, he gave me a fatal dose of opioids which then a few weeks later I overdosed on, attempting to take my life.

After I recovered, I found the recording and i would have been happy with an apology- however, because I am so used to being abused, I nearly accepted it when they rejected me. I decided to fight on and it has been over two years now.

I cant describe how little I have, the shell of the person I used to be. I have just passed my PhD pending changes-but I have nothing, am squatting, only have a computer and a car, (and my dog), and all these organisations and institutions are gaslighting and ignoring me and I am certain there is a conspiracy in which the recording is being silenced and they will feel less burden, (and also less expensive lest I sue every institution), if I die.

In brief:

1) an injustice occurred I recorded-that recording, even though in the public domain, has never been authenticated in a complaint, nor a transcription when it went to AHPRA. Simply- if the GP had done nothing wrong he would welcome the recording to exonerate himself. Simple.

1.1) I tried to kill myself with medication a GP gave me when I explicitly said I would kill myself-this was recorded and transcribed for a complaint to AHPRA.

1.2) I complained to AHPRA and over months - the recording was not validated nor my transcription because he had high profile lawyers who silenced it-hence my complaint was based on nothing.

2.2) AHPRA admitted 'marking up' the evidence - in their 'report' to me on the case. This is corruption, and edits a grade proof to every the course of justice.

2.3) I have evidence it was silenced from FOI in the lawyers remarks to AHPRA and in addition when they invited me in for the result they told me in person that the recording and the transcription were not taken into account.

3.1) I complained to NHPOPC about AHPRA and they said, despite my evidence AHPRA concealed censored and rejected evidence, they found no wrongdoing, even though the recording was public by this stage on my website at www.richmclean.com.au/justice

4.1) I complained to the Footscray police who said they would investigate after hearing the recording, and despite my evidence AHPRA corrupted the evidence, and NHPOPC sided with them, they said AHPRA investigated it thoroughly and would not be further involved.

4.2) I have recordings from an un-named policewoman at the Maribyrnong Criminal Investigations Unit saying they would never call me back, we are going around in circles and terminated the call.

4.3) I complained to IBAC (who investigate the police), about how they left a suicide survivor feeling hopeless, and covered up evidence, left telephone calls and emails unanswered.

feeling hopeless, and covered up evidence, left telephone calls and emails unanswered when they knew a suicide survivor was in distress. No one asked of my welfare-I was prejudiced against, gaslighted and burdened.

5.1) IBAC said the police acted accordingly and no action was taken. I felt invisible. I had a public document that I wanted valued by someone - even the police heard it - but despite this - and despite my evidence I can provide that the complaint was based on nothing and evidence tampered with, I was rejected yet by another institution.

‘ 6.1) I wrote to Greg Hunt and despite him witnessing the entirety of the evidence which I had posted on www.richmclean.com.au/justice and knowing I had gone to AHPRA and NHPOPC and the Police and IBAC - he referred me back to them.

6.2) I have been to the health minister of the land, and he gaslighted and rejected me. he has not returned my emails about the evidence I have - and whoever is pulling the strings is doing so from a high place.

6.3) he refuses to acknowledge any more emails, and will not respond to any calls.

7.1) This has taken over two years of my recording not being validated, or listened to, even though the police agreed to investigate it and it was silenced.

8.1) I made an additional complaint to AHPRA, (without the recording this time), and I mentioned that my former partner worked for ASIO, and david Irvine was his boss. This toxic narcissist personality type left me homeless and with his dying dog-and swore he would ruin my life.

8.2) This person admitted to being present at a murder, amongst other things, and in the relationship twisted my mind so much that I thought this was ok. he gaslighted me and drove me crazy. he lost 1.2 million dollars in a tax haven investment, that because he worked for ASIO - got off. To this day I pleaded with him to separate amicably-because I had spent my TPD payout in the relationship and he had over a million in super. However-I was on the pension at the time. We were engaged but marriage was not legal-yet relationships should have been declared - which i did - however he told me to say we had broken up and go on the pension because he could not afford us both. he was a monster, a crook, and an accomplice to murder. He told me if I went for his fair amount of super - then he would dob me into centrelink - and I would be jailed. I was powerless against his criminal mastermind.

9.1) The second complaint to AHPRA - they refuse to acknowledge that complaint and actively avoid me to silence me and the evidence. I cant believe it. I have a recording saying that they cant confirm nor deny they will ever get back to me.

10.1) I made a complaint to VCAT and legal places and others, including the Victorian Inspectorate, and The Human Rights Commission - who remarkably said they can only investigate Government bodies.

10.2) I cant believe it. Whoever is pulling the strings is doing a great job at silencing me and devaluing and dehumanising me.

11.1) I was violently assaulted in Footscray a few years ago - and i wondered why VOCAT said that I was the main aggressor-when I was defending the defenceless. I was hospitalised and suffer PTSD. I wanted everything the police had on me-so I got an FOI-and not only did they not provide the video that would have cleared me of wrongdoing, there are reports of burglaries and car thefts on my file which have nothing to do with me-as if someone has planted that there.

12.1) I made another complaint to The Human Rights Commission and the Victoria Inspectorate. They are stalling.

13.1) on another note during my PhD I realised I had been sexually abused as a child. I performed a speech about it at the State Library and wrote an article. When the pell stuff came up on TV it triggered me and I acted. It has been over two whole years and my lawyer cannot confirm if they will ever get back to me - only saying that they will contact me once they are contacted. I wonder - as my own family flesh and blood did - that they think I am insane and not to acknowledge me? My own mother said ‘I probably caught him with a dirty magazine.’ I am waiting for justice-and I am rationally paranoid it will never come because of this blight that is seemingly invisibly attached to my name and person.

I have said many times to them I will survive and get justice: The GP now I am ‘post-death’.

The suicide note I will attach below, as I lay dying, angrily mentioned him and my psychologist - a psychologist that refused to see me because I had no money, unethical in itself.

However, this gaslighting and disempowerment, via and from all these institutions, has driven me crazy. I am rationally paranoid - and rightly so-that there is a conspiracy to hurt me, devalue me and censor me.

I have all of the evidence in the form of many recordings and documents, and i continue with the email(s) below if you will indulge me reading them.

My last stop-the Human Rights Commission - told me they cant help because they do not deal with my issue.

i am agasp.

Where is the issue with a suicide survivor who told a GP he would kill himself, then followed through with it, suffering survivors guilt, and trying in his most able moments to challenge the system which favours those with money lawyers power and privilege - when they say they can only investigate corporate bodies?

These are all corporate bodies.

A person who is NOT vulnerable to stressors, as well as finishing a PhD - would be stressed by this.

i feel like I don't even know I exist. I need help. This is where I published the evidences so far: NHPOPC told me to take it down - or I will be sued. I cant believe it. I have only debt and a computer, and squatting.

www.richmclean.com.au/justice

here is the recording that is the topic of the silencing and seemingly has got me into a lot of trouble - even though i originally said I would only make a complaint if the GP has insurance.

<https://www.dropbox.com/s/4lsgxw3k10vtj/Dr.Whittaker.Evidence.mp3?dl=0>

Why oh why I am I fighting for my worth and dignity on behalf of all others who have killed themselves without so much as a welfare check?

Please can you offer advice or assist me.

I also invite you to see my advocacy:

<https://www.richmclean.com.au/advocacy>

My art, my voice, my fight for all people with different neurological conditions:

www.richmclean.com.au

i have been framed - badly, and the victim of gaslighting, human rights abuses, discrimination and worse.

i am a good person-and If I don't look in the mirror and say 'you have worth' every day - then i will cease to be here-and i can only be strong for so long.

If you need I have all the evidence relating to all these auspices people and organisations.

Please help me.

Rich Mclean Sane's 'Book of the year', Human Rights Awarded Author

Rich McLean:

However now even though I claimed I was going to overdose and die. (I did again but lived)

however now even though I claimed I was going to overdose and die, (I did again but lived), the human rights .gov people did not respond to this email:

Sorry to add all this but it is a cover up!

'You moron preya.

Going to the GP is exactly what this was about.

You absolute buffoon.

Its laughable.

i'm not finished - I'm just starting!

I have referred your case to another agency. You are being investigated. You will ALL be investigated. and all your emails exposed.

until I get my recording demonstrating the crime that led to my untimely death (but I lived) - heard in a court - you can all hold your breath-waiting for where its coming from.

preya, you know who I am and what i stand for because I told you. I told you who I am and what i stand for.

but you don't know from where out when its coming - but its coming.

:-)

...I promise you.

On 31 Aug 2020, at 4:43 pm, NHPOPC (DHHS) <complaints@nhpopc.gov.au> wrote:

Dear Mr McLean,

I am sorry that you continue to feel dissatisfied with the outcome of my investigation, and the reasons provided.

I am concerned that you have alluded to self-harm in your correspondence below, and have anticipated my response to be to contact your GP, Beyond Blue or Lifeline.

Please note that this office takes every threat seriously. I am therefore reinforcing the importance of seeking urgent help. You have previously informed me that you have a new GP and a support group. It is for this reason that I encourage you to seek their help whenever you have feelings of depression or self-harm. **Beyond Blue: 1300 224 636** and/or **Lifeline: 13 11 14** are also good support services that have the expertise to listen and provide relevant advise.

Further to my last email and per your request, I have now included the links for the following:

- *Freedom Of Information Act 1982*: http://www8.austlii.edu.au/cgi-bin/viewdb/au/legis/cth/consol_act/foia1982222/
- *Ombudsman Act 1976*: http://www8.austlii.edu.au/cgi-bin/viewdb/au/legis/cth/consol_act/oa1976114/

Request for an internal review

I believe that I have clearly explained to you our position. However, if you remain of the view that my handling of your matter was not fair and reasonable, it is open to you to request an internal review of my decision. Further information about our internal review process, including a form to assist you in making a request for an internal review, can be found at <https://nhpopc.gov.au/review-of-our-decisions/>. We only review a matter once. Once a matter has been reviewed, there is no further avenue of appeal or review of our decision. This means there is no agency which can accept complaints about the NHPOPC.

Matter closed

I now consider this matter closed. With the exception of receiving your request for an internal review (to which we will consider), all future correspondences relating to this investigation will be recorded on your file, but not responded to.

Kind regards

Preya McKenzie
Investigator

National Health Practitioner Ombudsman and Privacy Commissioner
50 Lonsdale street, Melbourne, Victoria, 3001
t. 1300 795 265 | e. complaints@nhpopc.gov.au | w. www.nhpopc.gov.au
<image001.png>

The office of the Ombudsman and Commissioner is currently implementing flexible work from home arrangements in response to health concerns related to COVID-19. Please raise any queries or questions you have about these arrangements with me. I thank you in advance for your patience during this time.

The health and wellbeing of our staff and community are of paramount importance to us. If you would like to find out more information about COVID-19 please call the Department of Health's hotline on 1800 020 080 or visit the website: www.health.gov.au.

The information in this message and in any attachments may be confidential. If you are not the intended recipient of this message, you must not read, forward, print, copy, disclose, or use in any way the information contained in this message or any attachment(s) it contains. The National Health Practitioner Ombudsman and Privacy Commissioner is committed to protecting the privacy and confidentiality of any personal information provided to us. If you are not the intended recipient, please notify the sender immediately and delete or destroy all copies of this message and any attachments.

From: Rich McLean <rich@richmclean.com.au>
Sent: Monday, 31 August 2020 12:35 PM
To: NHPOPC (DHHS) <complaints@nhpopc.gov.au>; Info Service <InfoService@humanrights.gov.au>
Cc: Rich McLean <rich@richmclean.com.au>
Subject: Re: *Confidential: Your Complaint to the NHPOPC about Ahpra – Proposed Outcome of investigation: Our ref: OCF/20/50

Hi preya, from NHPOPC, and I have cc'd this to Humanrights.gov.au

I want to say I emailed human rights.gov.au with the troubled response below on 28 Aug 2020.

I wish to say - it was clear that I was angry troubled and threatened that the abusers, pedophiles, and injustice worked...that you had won and I would be dead.

Although I threatened to kill myself and overdose, which i did - (Hooray I lived again) I did not receive any police call, welfare check, follow up - nothing.

As the Human Rights people, I am trying to get traction with a Human Rights issue - but it appears you would rather ignore me when I am thinking of suicide.

In actual fact - I think you all want me to die.

preya...please read my email carefully:

Human Rights people, I am awaiting to hear your justification for ignoring me.

Am I better off dead to you?

Thats not much of a human right now, is it?

On 27 Aug 2020, at 12:51 pm, NHPOPC (DHHS)
<complaints@nhpopc.gov.au> wrote:

Dear Mr McLean,

I have informed you that the *Freedom Of Information Act 1982* does not apply to the NHPOPC and therefore we are not obligated release the information you are requesting.

How do I know that? Please advise how someone with a disability is supposed to navigate that legally?

I have also informed you that your complaint was assessed under the *Ombudsman Act 1976*.

Can you if you refer to things, provide a copy of it at least? Thanks

Under section 6 of the Ombudsman Act, I decided not to investigate your complaint further upon considering all the information provided to me by Ahpra and yourself.

I believe I did not get a copy of that information.

I also know that - the recording not my transcription was not valued. Or otherwise - it was - but only to the degree of 'don't include it'.

I have provided evidence from AHPRA in the form of an FOI

I think it was one sided that he had a lawyer, and I didn't - don't you?

According to my new knowledge - it is not illegal to record something if it has to do with your human rights.

Can you comment on this?

I informed you that I was satisfied that it was reasonably open to the Board to conclude that Dr Whitaker's performance in this instance was not inappropriate,

I still don't understand. I told him how I would kill myself and he not only did not act on it but gave me the means.

Preya, am I insane?

and that he does not pose a risk to public health and safety.

If he did this to you or your child - what would you say?

please answer.

Under section 12 of the Ombudsman Act,

Can you provide this - if you are going to reference things you have a responsibility to provide the framework that my complaint was ruled as innocuous under.

I was required to inform you as soon as practicable of my decision and the reasons for my decision, which I did in my letter to you of 11 July 2020 (**attached**).

You are required to obey the law. the law has been broken. You and a huge conspiracy of people have devalued me and not acknowledged my recording.

I hope that I have clarified our position.

No it does not. You need to provide me with the documents.

I'll await this next stage!

Our office is unable to assist with seeking out legal representation for you.

I said in my last email:

'To expect a person who is differently abled to understand what is clearly legal garb is discrimination based on my disability.'

I think you owe me an apology.

And additionally you owe it to me to :

a) provide the legislation and policy against which you state you are exempt from my requests for information

b) Have a human heart and know that I am a human being - and that I know this does not sit well with your conscience - how can you continue your role when you know a crime with a high probability resulting in death occurred?

c) I may be suicidal again.

I complained to the Human rights commission and I have been battling them.

I folded the other night - this has taken 2 1/2 years - this is my last email to them with their version of the cover up below it:

You won, ok?

The pedophile killed me the narcissist abuser killed me the go killed me
psychiatry killed me the cops ignored me ahpra screwed the evidence NHPOPC
covered it up ibac said the cops did nothing wrong

I've watched friends die I was neglected rejected ostracised and non included

Now you like Greg Hunt have no value for human life and you will have to wear it

I'd like to say I have worth

I'd like to say you are responsible along with all the people psychologists who didn't care doctors who gave me fatal overdoses family who didn't believe me and prejudice me

Media that use and pathologised
Me

You can all suck my fat gay mad doctoral cock in my death

You will never find me

You're all sinful

I am proud of what I did in this life you fucking cunt you're the human rights people

I can't believe it but refuse to exist in a resonance that is so one sided and has no love so I'm going home

Fuck you

Blood on your hands

Rich McLean

Registered NDIS Provider | Arts-Life-Coach | Artist | PhD Researcher |
Victoria University

Discover my art & work @ www.richmclean.com.au

Call me on +61 400639248

Email me at rich@richmclean.com.au

I acknowledge the Indigenous people as the traditional custodians of
the land where we live, learn & work.

This email sent from my iPhone

On 28 Aug 2020, at 4:25 pm, Rich McLean
<rich@richmclean.com.au> wrote:

Well been thinking about killing myself for years and tried a few
time's

Your email put the nail in the coffin-if you ever find me

Fuck you

Rich McLean

Registered NDIS Provider | Arts-Life-Coach | Artist | PhD
Researcher | Victoria University

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custodians of the land where we live, learn & work.

This email sent from my iPhone

On 28 Aug 2020, at 4:05 pm, Info Service
<InfoService@humanrights.gov.au> wrote:

Dear Richard

I refer to your further email.

The Commission can consider claims of
discrimination, but the alleged unfair treatment

has to be based on a protected ground. These include race, sex, gender identity, sexual orientation, intersex status, pregnancy, marital or relationship status, age or disability.

You make reference to disability. I certainly appreciate the impact that this has had on you. However, there does not appear to be sufficient information to support an arguable claim that you were treated in the manner claimed **because of** your disability.

We can consider claims about victimisation, but this is where a person is subjected to a detriment because they lodged or sought to lodge a complaint of discrimination or breaches of human rights.

We are really not the most appropriate review body for AHPRA. That is the NHPOPC, which I note you have already contacted. It is our understanding the AHPRA is a state/territory body.

We are also the most appropriate review body for VIC Police. That is the VIC Ombudsman (www.ombudsman.vic.gov.au) or the Independent Broad-based Anti-Corruption Commission (www.ibac.vic.gov.au).

I also need to make it clear, this Commission does not 'advocate' for people. We are an independent complaint handling body.

I appreciate the level of concerns you have raised. Unfortunately, it really does not appear that this Commission can provide you the assistance you are seeking.

Should you have any further queries or wish to provide clarification, please advise by return email.

Regards,

Rebecca
Supervisor
National Information Service

Australian Human Rights Commission

Level 3, 175 Pitt Street, Sydney NSW 2000
GPO Box 5218, Sydney NSW 2001
T 1300 656 419 **F** 02 9284 9611

E infoservice@humanrights.gov.au **W**
www.humanrights.gov.au

Note: Our National Information Service phone line and our complaints functions remain open. If you have concerns about discrimination or other breaches of human rights, we are ready to assist you. Contact us on 1300 656 419 Monday to Friday, between the hours of 10am and 1.30pm EST or email us at any time on infoservice@humanrights.gov.au.

WARNING: The information contained in this email may be confidential.

If you are not the intended recipient, any use or copying of any part of this information is unauthorised. If you have received this email in error, we apologise for any inconvenience and request that you notify the sender immediately and delete all copies of this email, together with any attachments.

Preya, what do you suggest I do - or is there a procedure to follow with a suicidal patient?

I believe that you all want me dead.

I overdosed again on that night. Not as severe, but I wanted the pain to stop.

Maybe you should suggest I see my GP?

I'll wait to hear you refer me to Beyond Blue or Lifeline.

Any other suggestions are welcomed

Rich

You are welcome to contact your community legal centre for any further advice: <https://www.fclc.org.au/>.

Kind regards

Preya McKenzie

Investigator

National Health Practitioner Ombudsman and Privacy Commissioner
50 Lonsdale street, Melbourne, Victoria, 3001
t. 1300 795 265 | e. complaints@nhpopc.gov.au | w. www.nhpopc.gov.au
<image001.png>

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From: Rich McLean <rich@richmclean.com.au>

Sent: Tuesday, 25 August 2020 5:33 PM

To: NHPOPC (DHHS) <complaints@nhpopc.gov.au>;
humanrights@vcat.vic.gov.au;
newenquiries@slaterandgordon.com.au; Info Service
<InfoService@humanrights.gov.au>;
AHPRFeedback@ahpra.gov.au

Cc: g.parker@unsw.edu.au

Subject: Re: *Confidential: Your Complaint to the NHPOPC about
Ahpra – Proposed Outcome of investigation: Our ref: OCF/20/50

Dear preya, (CC Human Rights, VCAT and Mental Health Legal Centre),

Preya, I refer to your email below and the extensive legal garb below in your response to my valid (so i thought), request for information, to defend my case of medical malpractice and professional negligence that led to my untimely death (but then I lived).

I have been diagnosed with schizophrenia, schizoaffective disorder, PTSD, Panic Disorder, Manic depression, Depression, and adult ADHD. I have been sexually abused as a child and violently assaulted and survived a toxic relationship with a man who was present at a murder, and invested 1.2 million in an offshore tax haven, but because he worked for ASIO - he got off.

My mental health practitioners knew these things, including Dr Whitaker and Dr MacKinnon.

As for your email below, I am unable to interpret the email you sent me. That's because I am distressed. And most likely crazy(ish).

To expect a person who is differently abled to understand what is clearly legal garb is discrimination based on my disability.

I will expect you all to please respond to my email, with some support, so you preya, in person-or to my advocate, (when I get one), explain to me why you are exempt from my question of collecting information on myself so I can defend my worth.

RE: The original medical malpractice and professional negligence was from Dr John Whitaker, after my psychologist Dr Rob MacKinnon refused to pursue duty of care after I was violently assaulted, suicidal, and realising my childhood sexual abuse.

That recording, of the original complaint-which was never valued by AHPRA in my complaint, nor even though it was discussed that I could provide a transcript, was not authentically considered in my complaint.

That recording is here:

www.richmclean.com.au/justice

I say simply - if the GP did nothing wrong he would welcome the recording to exonerate him of any wrongdoing.

It is in the public domain, so The Human Rights people and also MHLC and Professor Gordon Parker can listen to it for themselves.

To prove I am mad, here is a list of medications I have had over many years:

Additionally, AHPRA have made clear that they (their words) 'marked up', my evidence here. This is corruption. They have not listened to the evidence, nor read a transcription. This is corrupt. Read the bit where they say they considered 'marked up' evidence:

In addition, as the victim of a conspiracy to silence the recording, can you please acknowledge the FOI from police that has me listed for many crimes I have no idea about - (in ACT) gee its as if I were being framed:

Also, I wish to draw to your attention that I have in possession the 'marked up' scribbled on my accurate transcription from dr

marked up corrected on my accurate transcription, from a whitakers lawyer, Mr ball.This is why the complaint had no basis whatsoever.

My complaint had no conceptual framework.

Here it is-scribbled upon with a note saying it is inconsistent and that don't give it value.

Where was my lawyer?

This is inexcusable, and incredibly one-sided:

I was devalued.

Also this process of just being valued over 2 1/2 years has caused me much distress.

No one has asked of my welfare.

As a suicide survivor as the original issue, I thought all the people involved may offer a little more compassion. I am a real person and I don't understand the email you sent me or its legal garb.

here is some of my frustrations which I sent to the entourage of people including MP Greg Hunt and the police, that covered this up:

It is indicative of my suffering.

Here is a book i wrote about my experience of 'schizophrenia'

<image002.jpg>

As such a mad person, with the evidence I do, I am not capable of interpreting your response.

I need an advocate representative or legal translator. If i don't get it I will sue you for discrimination.

here is the herald sun paper, heralding my madness:

<image003.jpg>

if you do not provide an advocate or a person of legal status who can translate what your email means, in a manner in which a person with a disability can understand - I will be forced to go to VCAT or Human Rights and file a complaint for discrimination based on different ability, or mental illness.

I will be naming you-Preya-as the accused. I will sue you, the GP, AHPRA, NHPOPC, might even add the police for good measure.

I expect I will get justice, one way or the other.

Preya just to let you know - I am just getting started.

Human rights and MHLC, I wish for you both to please carefully consider the evidence of my original complaint and the newer complaint detailing how it was Rob MacKinnon rejection that led me to beg for help (that is now with AHPRA - yet they are ignoring me), about Dr Rob MacKinnon rejecting my psychology sessions because I did not have any money. Then when I asked Gordon Parker of The Blackdog institute, he told me to see my GP.

I also note, that Preya, i have evidence that if I was suicidal - to see a GP.

isn't that funny because that's where all this started and I should be dead.

I guess if you're all on the right side of history, ethics, and human rights, you will all ledger the evidence above.

Kind regards,

Rich Mclean

PS every company has a duty to disclose evidence of crime whether it be malpractice, suicide, suicidality, tax fraud, murder, within their code of ethics.

now you are all complicit in that I'll just wait.

Have you ever slept with a mosquito in your room? Just because I am bereft of finance and have different abilities does not mean I should be discriminated against or ignored, gaslighted or rejected.

Bzzz

On 25 Aug 2020, at 12:13 pm, NHPOPC (DHHS)
<complaints@nhpopc.gov.au> wrote:

Dear Mr McLean,
I acknowledge your email below. In response to your 4 requests, please note:

1) All contents that AHPRA NHPOPC have on my person, my files, correspondence and any reports or complaints that I have submitted

2) The entire contents of my file that you all hold to do with my person, and every snippet of documentation that pertains to my file, perceived disabilities, and anything on your servers, in letters, or relates to me,

3) Every document or report you relied upon to come to the previous decisions, including Drs and Psychologist reports, plus any correspondence, between preys mackenzie, ahpra, the medical review board, dr whitaker, ball and partners, and every email I have sent all of you

The Freedom of Information Act 1982 (FOI Act) does not apply to documents and information held by the NHPOPC. Our office is therefore, not obligated to release this information to you. It is open to you to make a request directly to Ahpra for the release of these documents under the FOI Act.

4) A copy of your guidelines on which the rejection of my original complaint was assessed by.
Your complaint was assessed under the *Ombudsman Act 1976 (Cwlth)*. My decision not to continue to investigate your complaint was made pursuant to section 12 of the *Ombudsman Act 1976 (Cwlth)*. This decision was made in the exercise of power delegated to me by Ms Richelle McCausland, Ombudsman and Privacy Commissioner, pursuant to section 34 of the *Ombudsman Act 1976 (Cwlth)* (as modified by the National Law as in force in participating states and territories and the National Law Regulation).

Kind regards

Preya McKenzie
Investigator

National Health Practitioner Ombudsman and Privacy Commissioner
50 Lonsdale street, Melbourne, Victoria, 3001
t. 1300 795 265 | e. complaints@nhpopc.gov.au | w. www.nhpopc.gov.au
<image001.png>

The office of the Ombudsman and Commissioner is currently implementing flexible work from home arrangements in response to health concerns related to COVID-19. Please raise any queries or questions you

COVID-19. Please raise any queries or questions you have about these arrangements with me. I thank you in advance for your patience during this time.

The health and wellbeing of our staff and community are of paramount importance to us. If you would like to find out more information about COVID-19 please call the Department of Health's hotline on 1800 020 080 or visit the website: www.health.gov.au.

The information in this message and in any attachments may be confidential. If you are not the intended recipient of this message, you must not read, forward, print, copy, disclose, or use in any way the information contained in this message or any attachment(s) it contains. The National Health Practitioner Ombudsman and Privacy Commissioner is committed to protecting the privacy and confidentiality of any personal information provided to us. If you are not the intended recipient, please notify the sender immediately and delete or destroy all copies of this message and any attachments.

From: Rich McLean <rich@richmclean.com.au>
Sent: Tuesday, 25 August 2020 8:41 AM
To: NHPOPC (DHHS) <complaints@nhpopc.gov.au>
Cc: Rich McLean <rich@richmclean.com.au>
Subject: Re: *Confidential: Your Complaint to the NHPOPC about Ahpra – Proposed Outcome of investigation: Our ref: OCF/20/50

Preya,

Acknowledge my email.

Rich Mclean

On 21 Aug 2020, at 10:22 am, Rich McLean <rich@richmclean.com.au> wrote:

Preya please value and validate the email I sent below

Please report back to me if you are legally indoor opinion held to account by my request

The legal Voluntary Code of practice:

If I request information

from you - legally you are obliged to provide it.

I request:

1) All contents that AHPRA NHPOPC have on my person, my files, correspondence and any reports or complaints that I have submitted

2) The entire contents of my file that you all hold to do with my person, and every snippet of documentation that pertains to my file, perceived disabilities, and anything on your servers, in letters, or relates to me,

3) Every document or report you relied upon to come to the previous decisions, including Drs and Psychologist reports, plus any correspondence, between preys mackenzie, ahpra, the medical review board, dr whitaker, ball and partners, and every email I have sent all of you,

4) A copy of your guidelines on which the rejection of my original complaint was assessed by.

Rich Mclean

Rich McLean:

▪ Doctor of Philosophy
Research Student,
▪ Victoria University,
Melbourne.

248 PH : (+61) 0400 639

rich@richmclean.com.au

NDIS Provider, Arts-Life-Coach, Artist,
Illustrator, Author, PhD Researcher,
Advocate/ Public Speaker.

www.richmclean.com.au

I acknowledge the Indigenous people
as the Traditional Custodians of the
lands where we live, learn and work.

On 17 Aug 2020, at 11:17
am, NHPOPC (DHHS)
<[complaints@nhpopc.gov.
au](mailto:complaints@nhpopc.gov.au)> wrote:

Dear Mr McLean,

I acknowledge receipt of
your email below.

I have followed up the
status of your notification
with Ahpra. I have been
advised that a letter was
posted out to you on 13 July
2020.

You will shortly receive a
copy of this letter from
Ahpra.

Kind regards

Preya McKenzie
Investigator

National Health Practitioner
Ombudsman and Privacy
Commissioner
50 Lonsdale street,
Melbourne, Victoria, 3001
t. 1300 795 265 | e.
complaints@nhpopc.gov.au |
w. www.nhpopc.gov.au
<image001.png>

**The office of the
Ombudsman and
Commissioner is currently
implementing flexible work**

from home arrangements in response to health concerns related to COVID-19. Please raise any queries or questions you have about these arrangements with me. I thank you in advance for your patience during this time.

The health and wellbeing of our staff and community are of paramount importance to us. If you would like to find out more information about COVID-19 please call the Department of Health's hotline on 1800 020 080 or visit the website:

www.health.gov.au.

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From: Rich McLean
<rich@richmclean.com.au>

Sent: Thursday, 13 August 2020 11:55 AM

To: NHPOPC (DHHS)
<complaints@nhpopc.gov.au>;

AHPRfeedback@ahpra.gov.au;
infoservice@humanrights.gov.au

Cc:
humanrights@vcat.vic.gov.au; CSV-VCAT-HRD Inbox (CSV)

<humanrights@courts.vic.gov.au>

Subject: Re: *Confidential:
Your Complaint to the
NHPOPC about Ahpra –
Proposed Outcome of
investigation: Our ref:
OCF/20/50

Hello AHPRA, NHPOPC
VCAT and Human Rights,

RE: The over two years I
have been fighting for my
own worth re: medical
malpractice and
professional negligence of
Dr John Whitaker that
resulted in my likely death
(I lived).

Today i file a complaint
that AHPRA have
gaslighted and ignored me
and have not responded
to my complaint I made
months ago which is here:

AHPRA cannot just ignore
me-it is illegal

You are all discriminating
against me because I have
made a valid and worthy
complaint. This is against
the Human Rights Charter.

I would like to state that I
called AHPRA to enquire
on my case on
03/07/2020.

I recorded the
conversation which is my
right to do under victorian
law if it is protecting my
human rights

The recording where the
representative rejected

me - and I have not heard anything since - is here:

<https://www.dropbox.com/s/3wrvd3bwiniivia/03.07.2020.ahpra.not.give.response.time.not.acknowledge.m4a?dl=0>

NHPOPC I would like you to investigate why AHPRA will not acknowledge my new complaint, and why they will not give me an answer as to why they will not acknowledge me.

I wish to urge you all that the genesis of this complaint was a recording - between Dr Whitaker and I - that was silenced by all of you.

The recording I have published in the public domain at:

www.richmclean.com.au/justice

If Dr Whitaker did nothing wrong then why have all these organisations silenced the recording?

Just for the record and so you all know it exists-here it is:

<https://www.dropbox.com/s/l4lsgxw3k10vbtj/Dr.Whittaker.Evidence.mp3?dl=0>

If the GP did nothing wrong - he would welcome the recording to exonerate himself.

This is a cover up and a conspiracy to pervert the

course of justice.

I wish to state that you all are corrupt and you have sided with power and privilege to reject me and hope I will die, for I am less of a burden and less expensive if I were dead.

NHPOPC, I want you to acknowledge it listen to it and investigate this matter-and acknowledge this email.

I have filed a complaint with the Human Rights Commission.

One way or the other-I will get this heard.

This is outrageous for a suicide survivor to have to go through this much trauma and effort just to be heard valued and have worth.

I would like you to all acknowledge my email, and the attached complaint form for NHPOPC to complain about being gaslighted and ignored by AHPRA with my new complaint attached above.

I would also like to mention:

The legal Voluntary Code of practice:

If I request information from you - legally you are obliged to provide it.

I request:

1) All contents that AHPRA NHPOPC have on my person, my files, correspondence and any reports or complaints that I have submitted

2) The entire contents of my file that you all hold to do with my person, and every snippet of documentation that pertains to my file, perceived disabilities, and anything on your servers, in letters, or relates to me,

3) Every document or report you relied upon to come to the previous decisions, including Drs and Psychologist reports, plus any correspondence, between preys mackenzie, ahpra, the medical review board, dr whitaker, ball and partners, and every email I have sent all of you,

4) A copy of your guidelines on which the rejection of my original complaint was assessed by.

Human Rights can you please acknowledge my email.

Thanks.

Rich McLean:

- Doctor of Philosophy
Research Student,
- Victoria University,
Melbourne.
- PH : (+61) 0400 639 248
- rich@richmclean.com.au

NDIS Provider, Arts-Life-Coach, Artist, Illustrator, Author, PhD Researcher, Advocate/ Public Speaker.

www.richmclean.com.au

I acknowledge the
Indigenous people as the
Traditional Custodians of
the lands where we live,
learn and work.

On 3 Jul
2020, at
11:59 am,
Rich McLean
<rich@richmclean.com.au>
> wrote:

Hi Preya,
from
NHPOPC, cc
AHPRA,

I will be
forwarding
this email to
my lawyer.

I refer to
your
investigation
in which you
claim AHPRA
has

investigated
my case of
medical
malpractice
and
professional
negligence
against Dr
Whitaker,
and I note
that NHPOPC
has gone to
incredible
lengths to
covert this
up.

I say again - if
the GP did
nothing
wrong, he
would have
welcomed
the recording
to exonerate
himself.

I have
evidence
that his
lawyer
edited my
'transcript' of
the
consultation
- which was
seen as legal
- and
evidence
that he with
power and
privilege told
the
Australian
medical
Board not to
use it. So in
effect - my
complaint
was based on
nothing.

I believe that
I have a case,
and that
there is a
cover up.

I believe the
dispute was
incredibly
one-sided.

I believe I will
get justice.

I believe
NHPOPC are
protecting
AHPRA who
are
protecting
the GP. The
police have
been
involved and
I even have
an
acknowledge
ment from
Greg Hunt
MP who
refers me to
your
organisation
- again
gaslighting
me.

I want to
make a
complaint
about your
investigation
too the
relevant
authoritative
body.

I want to
know what is
the

legislative
body to
complain
about
NHPOPC to?

You have a
legal
obligation to
provide this
to me.

I want to
appeal and
challenge
your
outcome.

I remind you
that the
evidence of
the crime is
in the public
domain at:

[www.richmcl
ean.com.au/j
ustice](http://www.richmcl
ean.com.au/j
ustice)

I note that
you
threatened
me not to
publish it
because i
may be sued.
Go ahead.

It is not a
crime in
Victoria to
record
something if
it protects
your legal
rights or
safety.

Additionally -
I have
another

complaint
about AHPRA
for you to
investigate.

You see-the
conspiracy
that is
silencing me
is counting
on the fact I
will just go
away.

I will not.

please find
below a
complaint - a
new one
with
additional
information -
that I
complained
to AHPRA on
20/June
2020.

The
complaint
which
includes
evidence of a
murder cover
up and the
public
domain
where the
evidence
that has
been silences
is published
is clearly
factual.

Below, when
I did not
receive a
response, is
an email

from the
29th June
asking why i
did not
receive a
response.

I again was
ignored.

i called
AHPRA today
on
03/07/2020.

I know I have
all of you you
cornered,
because the
lady from
AHPRA said
that 'it was
unusual I did
not get a
response',
yet then
changed her
tune when
she realised
who I was.

She then
denied me
any traction
with AHPRA
gave no
reason no
contact and
no
explanation.

As is my
right, and
without
identifying
her - I
recorded the
conversation
as evidence
of how she
refuses to

acknowledge
my
complaint.

That
recording is
here:

[https://www.
dropbox.com
/s/3wrvd3bw
iniivia/03.07.
2020.ahpra.n
ot.give.respo
nse.time.not.
acknowledge
.m4a?dl=0](https://www.dropbox.com/s/3wrvd3bwiniivia/03.07.2020.ahpra.not.give.response.time.not.acknowledge.m4a?dl=0)

I look
forward to
you:

a) providing a
method by
which I can
reject your
complaint

b)
acknowledge
that the
evidence is in
the public
domain and
AHPRA know
this and so
do you

c)
acknowledge
the above
recording
and give me
indication
you will
investigate
this extra
issue of
AHPRA not
valuing a
complaint or
giving due
response to a

complainant
d) the
summary of
the
complaint is
attached
below,
(which
AHPRA will
not
acknowledge
) , where you
will also
acknowledge
you are now
witness to
information
regarding a
murder, not
including my
own death

Thanks for
your swift
reply.

Rich
<Summary of
complaint or
concern.pdf>
AHPRA

I would like to
ask:

Where is the
reply to this
new
complaint?

You are legally
obliged to
acknowledge
me.

The reference
number is:

00444964

The complaint

is attached in
PDF form.

<Summary of
complaint or
concern.pdf>

Rich McLean:

- Doctor of
Philosophy
Research
Student,
- Victoria
University,
Melbourne.
- PH : (+61)
0400 639 248
- [rich@richmcl
ean.com.au](mailto:rich@richmcl
ean.com.au)

NDIS
Provider,
Arts-Life-
Coach, Artist,
Illustrator,
Author, PhD
Researcher,
Advocate/
Public
Speaker.

[www.richmcl
ean.com.au](http://www.richmcl
ean.com.au)

I
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pc.gov.au > wrote : Dear Mr McLean , Your complaint into the NHPPC about

cut A h p r a = p r o p o s e d O u t c o m e o f i n v e s t i g a t i o n O u r r e f : O C F / 2 0 / 5 0 I r e f e r

. to the above matter .

I have now completed my investigation, and **attach**

Letter with my proposed findings.

Once you have had an opportunity to co

consider the proposed findings, you are welcome to contact me by email today



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street, Melbourne, Victoria, 3001
t. 1300 795 265 | e. connect@nhppc.org

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work from home arrangements in response to health concerns

· e l a t e d t o C O V I D - 1 9 · P l e a s e r a i s e a n y q u e r i e s o r q u e s t i o n s y



~ u h a v e a b o u t t h e s e a r r a n g e m e n t s w i t h t h m e . I t h a n k y o u i n a d v a n ~



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or
visit
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:
www.health.gov.au

The
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this message and in any attachments may be confidential . If you are not the intended recipient

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Information contained in this message or any attachment(s) it contains. The National Health

My and confidentiality of any person's information provided to us. If you are not the intended

recipient, please notify the sender immediately and delete the orders to destroy all copies of this

message and any attachments.

<2020.06.11- M C L E A N R i c h a r d - o u t c o

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<2020.06.11 - MCLEAN Richard - outcome of investigation - s 12
notice to complainant - foreshadowing closure .pdf>'

On 19 Aug 2020, at 4:58 pm, MHLC <mhlc@mhlc.org.au> wrote:

Hi Simon,

MHLC is not acting for Mr Mclean in this matter.

Regards,
Sarah

Sarah
Paralegal
Mental Health Legal Centre Inc.

<image002.png>P.O Box 12365
A'Beckett Street
Melbourne VIC 8006
Ph: 03 9629 4422
Fax: 03 9347 4992
Country Callers: 1800 555 887

Work days: Tuesday, Wednesday, Thursday and Friday

Web: www.mhlc.org.au

This email, including all attachments, is confidential and may contain legally privileged information. If you are not the intended recipient, you must not disclose, distribute, copy or use the information contained in this email or attachments. Any confidentiality or privilege is not waived or lost because this email has been sent to you in error. If you have received it in error, please let us know by reply email, delete it from your system and destroy any copies.

MHLC acknowledges the traditional custodians of the land on which we work and pays respects to Elders past, present and emerging.

<image003.jpg>

From: Simon Dooley <SDooley@afca.org.au>
Sent: Tuesday, 18 August 2020 12:02 PM
To: 'rich@richmclean.com.au' <rich@richmclean.com.au>
Cc: MHLC <mhlc@mhlc.org.au>
Subject: AFCA Case 737458, Mr Richard McLean and Bendigo and Adelaide Bank Limited

Dear Mr McLean,

Thank you for your time yesterday.

As requested, I have CC'd the Mental Health Legal Centre into my email.

Please find attached correspondence relating to your complaint with Bendigo Bank which requires a response from you by **8 September 2020**.

If you require more time to respond or have any queries about the complaint, please do not hesitate to contact me.

Kind regards,

Simon Dooley
Case Analyst
Fast Track
T. 03 9099 2253 | **Free Call:** 1800 931 678
www.afca.org.au

<image001.png>

AFCA acknowledges the traditional owners of country throughout Australia and their continuing connection to land, culture, and community. We pay our respects to elders past, present, and emerging.

IMPORTANT The contents of this email (including any attachments) are confidential and may contain privileged information. Any unauthorised use of the contents is expressly prohibited. If you have received this email in error, please notify us immediately by Telephone: 1800 931 678 (local call) or by email and then destroy the email and any attachments or documents. Our privacy policy is available on our website.

